

25STCV19674 25STCV19674

County: los-angeles

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 1, 2026

CASE NUMBER

25STCV19674

MOTION

Motion for Preliminary Injunction

MOVING PARTY

Plaintiff Bangside Productions, LLC

OPPOSING PARTIES

Defendants Asim

Jamal Shakir Jr. and Shakir Publishing LLC

MOTION

Plaintiff

Bangside Productions, LLC ("Plaintiff") moves for a preliminary injunction against Defendants Asim Jamal Shakir Jr. and Shakir Publishing LLC ("Defendants") to enjoin Defendants "from using, pitching, shopping, licensing, selling, distributing, disclosing, publishing, or otherwise exploiting any materials relating to the project currently titled 'Land of No Pity' (the 'Project'), including scripts, footage, pitch materials, edits, and other project files . . . , and from transferring, deleting, destroying, or altering any Project Materials, pending final disposition of this action." (Notice of Motion for Preliminary Injunction, p. 2.)

Plaintiff also

purports to seek "an order requiring Defendants to preserve all Project Materials and related communications, and to return and/or provide a sworn inventory identifying all locations where Project Materials are stored." (Motion, p. 2.) Plaintiff may obtain such information through ordinary discovery procedures. Plaintiff cites no authority by which it may obtain discovery through a motion for preliminary injunction. Accordingly, the Court disregards this request.

Defendants oppose
the motion.

ANALYSIS

"To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm it will suffer if an injunction is not issued pending an adjudication of the merits. ¶ If the threshold requirement of irreparable injury is established, then we must examine two interrelated factors to determine whether the trial court's decision to issue a preliminary injunction should be upheld: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction." (Costa Mesa City Employees' Assn. v. City of Costa Mesa (2012) 209 Cal.App.4th 298, 305-306, internal quotations and citations omitted.) The Court will not issue an injunction unless it "appear[s] that monetary relief would not afford adequate relief or that it would be extremely difficult to ascertain the amount of damages." (Pacific Decision Sciences Corp. v.

Superior Court (2004) 121 Cal.App.4th 1100, 1110.)

In the instant

case, Plaintiff supports the motion by submitting the declaration of Contrina Smith ("Smith"), who is Plaintiff's owner.

Smith states Plaintiff invested \$175,000 with Defendants to produce a television series; and Defendants used Plaintiff's investment for unauthorized expenses unrelated to the television series, provided unauthorized access to episodes of the series without Plaintiff's consent, and changed the login credentials to accounts associated with the series to prohibit Smith's access. (Declaration of Contrina Smith in Support of Plaintiff's Motion, ¶¶ 2-5, 7.)

Smith does not

explain how Plaintiff has personal knowledge of Defendants' purported actions. As such, Smith's testimony is inadmissible. (Evid. Code, § 702.) Smith's testimony Defendants registered Land of No Pity as a trademark is also inadmissible for lack of personal knowledge. Likewise, to the extent Smith testifies based on what others told Smith, her testimony is hearsay and inadmissible. (Evid. Code, § 1200.)

In support of its motion,

Plaintiff has also offered the declaration of Toni Tulloch ("Tulloch") who explains the role she played in developing "Land of No Pity." Although Tulloch states she signed an agreement with Plaintiff on Defendants' behalf, Tulloch also describes difficulties she experienced with Defendants and surmises, based on her observations of Defendants' conduct, Defendants intentionally defrauding investors and misappropriated funds. (Declaration of Toni Tulloch in Support of Plaintiff's Motion, ¶¶ 6, 8-9, 11-13.)

In opposition Defendants

have submitted a declaration from Asim Jamal Shakir, Jr. in which he avers he is an 85% owner and CEO of Defendant Shakir Publishing LLC and Tulloch is a 15% owner of the entity (Declaration of Asim Jamal Shakir, Jr. in Support of Opposition, ¶ 1); he had no contact with Plaintiff and did not sign an agreement with Plaintiff (id., ¶ 3); the purported agreement between Plaintiff and Defendants arose sometime after he and Tulloch were embroiled in a personal dispute (id., ¶ 4); and otherwise largely disputes allegations made by Smith and Tulloch (see, e.g., id., ¶¶ 6-13).

Given the disparate

contentions in this matter which are highly disputed, on the record currently before this Court, it cannot conclude Plaintiff has established the threshold requirements noted above have been satisfied nor that there is a likelihood Plaintiff will ultimately prevail on the merits such that the extraordinary relief Plaintiff seeks is warranted. Discovery and a more developed record may prove otherwise down the line. However, at this time, Plaintiff has failed to advance sufficient and substantial evidence to support its motion.

CONCLUSION AND ORDER

The motion, therefore,
is denied.

Plaintiff is
ordered to provide notice of the Court's ruling and to file proof of service of
same.